NATIONAL COMPANY LAW TRIBUNAL
GUWAHATI BENCH
GUWAHATI

CA (CAA) NO. 07/GB/2022

Coram:
Hon'ble Shri Rohit Kapoor Member (J): Hearing through
Hon'ble Shri Prasanta Kumar Mohanty, Member (T): Video Conference

ATTENDANCE-CUM- ORDER SHEET OF THE HEARING OF GUWAHATI BENCH OF THE NATIONAL COMPANY LAW TRIBUNAL ON 21.06.2022

In the matter of:

Abhilasha Agencies Pvt. Ltd. and Another

(Transferor Companies)

and

Singla & Jain (Engineers) Pvt. Ltd.

(Transferee Company)

Section: Under Section 230 to 232 of Companies Act, 2013

S. NO.	NAME (CAPITAL LETTERS)	DESIGNATION	REPRESENTATION	SIGNATURE
1.	NONE	Advocate	Petitioners	Present in Video Conference

O R D E R

The case is fixed for pronouncement of Order. The Order pronounced in open court vide separate sheets enclosed.

Sd/-

(**Prasanta Kumar Mohanty)**
Member (Technical)

Sd/-

(Rohit Kapoor)
Member (Judicial)

NATIONAL COMPANY LAW TRIBUNAL
GUWAHATI BENCH
GUWAHATI

C.A. (CAA) No. 07/GB/2022

Under Section 230-232 of Companies Act, 2013

IN THE MATTER OF:

SINGLA & JAIN (ENGINEERS) PRIVATE LIMITED (SJEPL)
A Company incorporated under the Companies Act, 1956 (CIN: U45202AS1964PTC017429) having its registered Office at Bhagirathi Apartment, F/No. 5C, 5th Bye Lane, Zoo Narengi Road, Guwahati-781021, Assam.

... Transferee Company

AND

ABHILASHA AGENCIES PRIVATE LIMITED (AAPL)
A Company incorporated under the Companies Act, 1956 (CIN: U51109ML1997PTC013638) having its registered Office at Pine Mount School, Near NCC Office, East Khasi Hills, Shillong-793001, Meghalaya.

...Transferor Company No. 1

AND

ANURAG TIE-UP PRIVATE LIMITED
A Company incorporated under the Companies Act, 1956 (CIN: U51109ML2008PTC013629) having its registered Office at C/O Singla Associates Pine Mount School, Near NCC Office, East Khasi Hills, Shillong-793001, Meghalaya.

...Transferor Company No. 2

CORAM: HON'BLE SHRI ROHIT KAPOOR, MEMBER (J)
HON'BLE SHRI PRASANTA KUMAR MOHANTY, MEMBER (T)

Order delivered on 21.06.2022

ORDER
[Per: Hon'ble Shri Rohit Kapoor Member(J)]

1. The present application has been filed under Sections 230 to 232 of the Companies Act, 2013, read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016, with the object to obtain sanction of this Tribunal to a Scheme of Arrangement between **ABHILASHA AGENCIES PRIVATE LIMITED/ AAPL (Transferor Company No. 1) and ANURAG TIE-UP PRIVATE LIMITED/ ATUPL (Transferor Company No. 2) with SINGLA & JAIN (ENGINEERS) PRIVATE LIMITED/ SJEPL (Transferee Company)** wherein the merger of Abhilasha Agencies Private Limited and Anurag Tie-up Private Limited with Singla & Jain (Engineers) Private Limited is proposed.

2. A copy of the Scheme of Arrangement has been annexed herewith

3. All the above mentioned applicant companies comes under the jurisdiction of this Bench.

4. The Applicants have prayed for the following reliefs:

a. To confirm the merger of the Petitioner Companies i.e. Abhilasha Agencies Private Limited and Anurag Tie-up Private Limited with Singla & Jain (Engineers) Private Limited.

b. Such further order or orders be made and/or directions be given as this Hon'ble National Company Law Tribunal may deem fit and proper.

5. The objects/reasons that have necessitated and/or justified the scheme of arrangement as mentioned in the Application are as follows:

5.1 The proposed amalgamation will enable all the Companies to consolidate their business operations and provide significant impetus to their growth since all the Companies are engaged in similar areas of business.

5.2 The proposed amalgamation is likely to create synergies by consolidating ownership and will result in achieving a simple and transparent ownership structure.

5.3 The proposed amalgamation will lead to reduction of administrative cost and overhead expenses which would further lead to greater and effective executive control, synergy of operations and optimum of utilization of available resources.

5.4 The proposed amalgamation will also result in significant reduction in the multiplicity of legal and regulatory compliances required at present to be carried out by the Companies and will enable better leverage of facilities, infrastructure and human resources and better administration of the business operations.

5.5 The proposed amalgamation will result in improved shareholder value for all the Companies by way of improved financial structure and cash flows, increased asset base and stronger consolidated revenue and profitability.

5.6 Result in enhanced leveraging capability of the combined entity which in turn will allow the combined entity to undertake future expansion strategies and to tap bigger opportunities in the industry.

5.7 Consolidation of managerial expertise of the Companies will facilitate greater focus and utilization of resources. Amalgamation will give additional strength to the operations and management of the Amalgamated Company.

6. The Applicants further submits that:

6.1 The Board of Directors of the TRANSFEREE COMPANY and the TRANSFEROR COMPANIES have at their Board meeting held on 25th February, 2021 passed resolution approving the Scheme of Arrangement whereby the merger of the TRANSFEROR COMPANIES with the TRANSFEREE COMPANY has been placed on records.

6.2 The total number of Equity Shareholders in the 'ABHILASHA AGENCIES'/ Transferor Company No. 1 are 6 (Six). A copy of list of Equity Shareholders duly certified by the Statutory Auditors of the 'ABHILASHA AGENCIES'/ Transferor Company No. 1 has been annexed herewith. The total number of Equity Shareholders in the 'ANURAG TIE-UP'/ Transferor Company No. 2 are 3 (Three). A copy of list of Equity Shareholders duly certified by the Statutory Auditors of the 'ANURAG TIE-UP'/ Transferor Company No. 2 has been annexed herewith.

6.3 The total number of Equity Shareholders in the 'SINGLA & JAIN (ENGINEERS)'/ Transferee Company are 4 (Four). A copy of list of Equity Shareholders duly certified by the Statutory Auditors of the 'SINGLA & JAIN (ENGINEERS)'/ Transferee Company has been annexed herewith.

6.4 All the Shareholders of both the Transferor Companies have given their written consent by way of affidavit to the Proposed Scheme of Arrangement. A copy of affidavit in the form of consent by shareholders of the Transferor Companies have been annexed herewith.

6.5 All the Shareholders of the Transferee Company have given their written consent by way of affidavit to the Proposed Scheme of Arrangement. A copy of affidavit in the form of consent by shareholders of the Transferee Company has been annexed herewith.

6.6 A Certificate from the Statutory Auditor of the 'SINGLA & JAIN (ENGINEERS)'/ Transferee Company certifying the NIL Creditors as on 12.03.2022 has been annexed herewith.

6.7 A Certificate from the Statutory Auditor of the 'ABHILASHA AGENCIES'/ Transferor Company No. 1 certifying the NIL Creditors as on 12.03.2022 has been annexed herewith.

6.8 A Certificate from the Statutory Auditor of the 'ANURAG TIE-UP'/ Transferor Company No. 2 certifying the NIL Creditors as on 12.03.2022 has been annexed herewith.

6.9 The Pre-Merger Shareholding and Post Merger Shareholding of the Transferee Company has been annexed.

6.10 The Statutory Auditors of the TRANSFEREE COMPANY and the TRANSFEROR COMPANIES have certified that the Accounting treatment proposed in terms of Part-VII of the Scheme is in conformity with the Accounting Standard AS-14 issued by The Institute of the Chartered Accountants of India (ICAI) and as per Section 133 of the Act prescribed under Section 133 of the Companies Act, 2013. The Certificate issued by the Statutory Auditors has been annexed herewith.

6.11 The Valuation Report of the Transferor Companies and the Transferee Company has been annexed.

7. At the time of hearing of this application, the learned counsel appearing on behalf of the applicant companies have prayed to dispense holding of the meetings of the shareholders and creditors of all the applicant companies in view of the consent affidavits of all the shareholders and the certificate from the Statutory Auditor certifying NIL Creditors in both the Transferee Company and the Transferor Companies

O R D E R

8. Having heard the Ld. Counsel for the applicant companies, and by perusing the records, documents annexed to the application and consent affidavits filed on behalf of the shareholders of the Transferor Companies and the Transferee Company to approve the proposed Company Scheme in the instant proceedings, the requirement of convening and holding of meetings of the equity shareholders of the applicant Companies is dispensed with. In view of the fact that there are NIL Creditors of the Transferor Companies and Transferee Company, the requirement of convening and holding separate meeting of the Creditors of the Applicant Companies does not arise.

9. Therefore, in our view, the present Company Application deserves to be allowed. Accordingly, it is allowed in terms of the prayer clause and subject to following directions:

9.1 In compliance of sub-section (5) of Section 230 of the Act and Rule 8 of the Companies (CAA) Rules, the Applicant Companies shall send a Notice in Form No. CAA 3 with a copy of the Scheme of Arrangement, the Explanatory Statement and the disclosures mentioned under Rule 6 (to the extent applicable) to:

a. The Central Government through Regional Director, North Eastern Region, Guwahati
b. The Registrar of Companies, Guwahati
c. The Official Liquidator, Guwahati
d. The Income Tax Authority concerned having jurisdiction over the affairs of the Companies

by informing that their representations, if any, are to be made within a period of 30 days from the date of receipt of such notice, failing which it would be presumed that they have no objection to make on the proposed Company Scheme/ proposal. Such notices shall be sent forthwith by registered post or by speed post or by courier or by hand delivery at the office of the above authorities as required by sub-rule (2) of the Rule 8 of the Companies (CAA) Rules, 2016. The aforesaid authorities who desire to make any representation under sub-section (5) of Section 230, shall send the same to the Tribunal within a period of 30 (Thirty) days from the date of receipt of such notice, failing which it would be deemed that they have no representation to make on the proposed arrangement/proposals.

9.2 The Applicant Companies are to ensure that Affidavits with regards to sec 29A of the IBC have been filed.

10. The Applicant Companies are hereby directed to file a Compliance Report with the Registry proving service of notices to all statutory/sectorial authorities

and compliance of all directions contained herein within two weeks from the date this order is uploaded on the E-portal.

11. With the aforesaid directions/observations, the present Company Application, being **first motion petition i.e. CA (CAA) No. 7/GB/2022 stands allowed (in terms of its prayer clause) and disposed of.**

Sd/-

(Prasanta Kumar Mohanty)
Member (Technical)

Sd/-

(Rohit Kapoor)
Member (Judicial)